Morris & Miller LLP

Katy, TX
Phone 832-555-7962

Settlement Demand

2024-12-11

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1106 - Demand for settlement

Dear Claims Representative:

Our firm represents Scott Johnson in connection with injuries sustained in a collision that occurred in a parking lot on 2024-02-26. The facts are straightforward. Your insured's vehicle backed out of a parking space and struck our client's vehicle while she was stopped and waiting to pull into an adjacent space. The impact was forceful enough to jerk her body violently against her seatbelt and seat, and she immediately experienced pain in her lower back.

Medical evaluation confirmed a lumbar strain with muscle spasm. Her treating physician has prescribed physical therapy, muscle relaxants, and restricted activity, and she has missed several days of work as a result. She continues to experiecne pain when sitting for extended periods and when lifting, and her recovery is ongoing.

Liability is clear. Your insured had a duty to check for traffic before reversing, and the collision was entirely avoidable had reasonable care been exercised. Our client was not at fault and bears no responsibility for the incident.

We have calculated the damages to date, including medical expenses, lost wages, and compensation for pain and suffering, and we are prepared to resolve this claim without litigation. Our client will accept $189,000.00 in full settlement of all claims arising from this incident. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will proceed with filing suit without further notice.

Expert review: Christian Carter, pain management physician

Sincerely,

Stacy Jones
Morris & Miller LLP